In the Matter Of:

ROSARIO vs ABDELHALIM

CGC-21-594102

NICHOLAS RAFFIN

March 10, 2023

PMK

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SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

UNLIMITED CIVIL JURISDICTION

Franciscus Dylan Rosario,

Plaintiff,

vs. Case No. CGC-21-594102

Subhi Abdelhalim, individually,
and dba Sonoma Liquor,

Defendants.
_____/

VIDEOCONFERENCE DEPOSITION OF
PERSON MOST KNOWLEDGEABLE

NICHOLAS RAFFIN

FRIDAY, MARCH 10, 2023
01:00 p.m.

Marcie Rivera, CSR No. 11846

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(NONE MARKED)

FRIDAY, MARCH 10, 2023; 01:00 P.M.,

NICHOLAS RAFFIN

Having been first duly sworn, was examined and testified as follows:

EXAMINATION

BY MR. CHAMBERS:

Q Would you state your full name for the record, please.

A Sure. It's Nicholas Ethan Raffin.

Q All right. My name is Mike Chambers and I'll be taking your deposition this afternoon.

Have you ever had your deposition taken before?

A I have not, no. This is new for me.

Q All right. So I'll just go through some ground rules with you. The first one is that you've been placed under oath and you'll be testifying under the penalty of perjury.

Do you understand what that means?

A Yes.

Q Okay. Your testimony this afternoon is going to be taken down by the court reporter. She's going to put it into a written transcript. You'll be given an

opportunity to review that transcript and to make any changes or corrections that you feel are necessary. I want you to know that any changes or corrections that you make to your transcript can be commented on in an arbitration or trial.

Do you understand that?

A Yes.

Q Okay. When you're answering questions today I don't want you to guess or to speculate. If you don't know the answer to a question or if you don't remember, please indicate that.

Do you understand that?

A Yes.

Q The other thing is that -- and we're doing very well so far -- when you respond to questions today you need to speak your answers, particularly if it's a yes or no response, you need to say that word "yes" or "no" rather than nodding or shaking your head.

The other thing to remember especially in this Zoom format, we both can't be speaking at the same time. If that happens, the court reporter can't hear either one of us and we have to redo the question. So when I'm asking a question today, when I finish speaking just give me a couple of heartbeats before you come in with your answers, and I'll do the same when you're giving answers.

And the other thing is, what happens all the time is, I'll start to ask something really obvious but don't anticipate the question and jump in with a response. Just wait for me to finish speaking before you come in with your response.

Do you understand that?

A Yes.

Q Great. The other thing that sometimes happens in this Zoom format is I'll be speaking and for whatever reason my audio goes out. And usually the court reporter will let me know right away that it's happened, but if it's only on your end, let me know right way that you didn't hear the entire question and then I'll repeat the question so you hear the entire question.

Do you understand that?

A Yes.

Q Great. And then if I ask you something that you don't understand, just tell me and I'll keep rephrasing the question until you do understand.

Do you understand?

A Yes.

Q Okay. This shouldn't go too long today but if you need to take a break for whatever reason, just let us know and we can go off the record. Okay?

A Okay.

Q So I just want to get a little background on you. What's your position with The Raffin Group?
A So I am the founder and managing member.
Q Okay. And when was The Raffin Group founded?
A So The Raffin Group was founded in August 2020, after I left the flagship office of Merrill Lynch in New York.
Q I'm sorry, what office?
A Oh, after I left the Fifth Avenue Complex -- the flagship office of Merrill Lynch in New York.
Q Okay. And what was the purpose of founding The Raffin Group?
A I was interested in using technology to automate the wealth management process, and ultimately replace financial advisors with a voice artificial intelligence.
Q And what was your position at Merrill Lynch?
A I was the founder of a financial advisory group called The Raffin Group. And I went through their two-and-a-half-year wealth management development program called TFA.
Q At Merrill Lynch?
A Yes.
Q And it's called TFA?
A Yeah, Team Financial Advisor. It's a

two-and-a-half-year program, or around that amount of time.

Q Did you do that straight out of college or did you come from somewhere else to go to Merrill Lynch?

A No actually. I started at Lampert Capital Markets. I did that I believe for over a year although I am not sure on the exact timing, and applied, and was accepted into this premier program.

Q Have you completed any of the courses towards becoming a certified financial planner or anything like that?

A Absolutely. I've completed the full education and I have a certificate for that but have not actually completed the exam. And I'm a certified investment management analyst, or a CIMA, which is a quantitative credential for asset allocation management.

(Reporter clarification)

THE WITNESS: Oh, sure. I'm also a CIMA, a certified investment management analyst. I should say "professional" after that. If I use that certification I have to say "professional" after CIMA or something like that.

BY MR. CHAMBERS:

Q Okay. And you say you still have to take -- what exam do you still need to take?

A For the CFP, see if I decide to actually use that credential.

Q But you've done the coursework up to that point?

A Correct. I've completed all of the coursework.

Q So The Raffin Group was founded in August of 2020, was it just yourself or were there other people involved?

A Just myself.

Q So we're here today regarding a contract that was entered into with The Raffin Group.

Do you have a copy of that in front of you?

A I don't believe so.

Q Okay. Let me do this, let me go ahead and share my screen.

A Thank you.

Q I think what Jeremy and I are both interested in is working with you through this contract to try to determine, you know, what's involved in the contract. So let me see if I can share my screen. Let me see if I can find that. Yeah, here we go.

MR. CHAMBERS: All right. Could everybody see that?

THE WITNESS: Yes.

MR. JESSUP: Yes.

BY MR. CHAMBERS:

Q Okay. Good. Okay. So were you involved in the negotiation of this contract?

A This contract in particular is not the one we signed. I don't know for this.

Q Oh, okay. Have you seen this contract before?

A I don't remember. When I was starting The Raffin Group I was negotiating with many different providers and there were a lot of contracts. There were talks early on but this, I don't remember.

Q Do you remember dealing with Mr. Rosario regarding this contract?

A Absolutely. Yes.

Q But is -- do you remember this being the contract that you negotiated with Mr. Rosario?

A No, I don't remember.

Q Is that something you can find, what the actual contract was that you negotiated with Mr. Rosario?

A Certainly. I have the assigned copy but it was for much smaller figures. When Dylan and I first started talking, he quoted very large figures and the idea was we would raise capital so he and his team could be paid what they deserved, and I would be an early use case for them. So the numbers were smaller that I was on the up for for this.

Q Okay. Do you have access to that contract at the moment?

A I do. Sure.

Q Maybe if you could email it to us we could maybe put it up and we could all view it together?

A Absolutely. Yeah, my pleasure. One moment.

Q If we got you here I don't want to waste your time if we --

A Thank you so much. I appreciate that. And just one moment. I noticed it was the middle of the workday that this was scheduled so I was a little wary but happy to help.

Q Yeah, we usually do these things during the day.

A Sure.

MR. JESSUP: It is our workday.

THE WITNESS: Right.

MR. CHAMBERS: Our workday goes really long sometimes, so it's a --

THE WITNESS: Let's see, it would be -- I think it was December 2nd is where I have this, where we finally reached an agreement. Sorry, just one more moment.

MR. CHAMBERS: Yeah, no problem.

MR. JESSUP: We're off the record right now,

right, madam court reporter?

MR. CHAMBERS: Yeah, we'll go off the record. I'm sorry.

(Off record)

MR. CHAMBERS: We're back on the record.

BY MR. CHAMBERS:

Q Okay. So we're looking at the contract that was actually signed; is that correct?

A Yes.

Q And it looks like the contract was signed on December 3rd, 2020?

A Yes.

Q And this was the initial phase of the project with the hope to use this to raise capital?

A Correct, yes.

Q And the purpose of the contract was to develop a voice artificial intelligence to replace wealth management personnel?

A No, actually. It was to use the voice artificial intelligence that Rowzzy had, to replace financial advisors; so we didn't have to develop the AI, we had to integrate the AI into a React dashboard.

Q So someone could theoretically get on the Schwab -- or get on the site, speak to the AI, and get what they needed to be accomplished?

A Exactly. For example, imagine you wanted to see performance of an ETF last week at noon. Instead of fiddling around with clicking buttons you could say, you know, hi Raven, or Amigo, or whatever we were going to call it, please show me my ETF performance last week at noon, and it would just pull it up.

Q And the first phase of the project was to design a secure dashboard?

A Yes.

Q And it appears that was accomplished?

A I don't want to say fully accomplished but lots of work was put into it. And we were getting close to being at a point where we could raise capital comfortably and I could show it, so get a better valuation.

Q And you were also designing something that would work with Schwab?

A Absolutely. I -- my firm custodies assets with Schwab and they have a fantastic digital platform. And so it would be very advantageous, and just flat-out cool, to be able to integrate with them, but they are very stringent with whom they let access the data seamlessly. It takes a lot.

Q And then you indicated you had two phone calls with Mr. Rosario regarding the project?

A Sorry?

Q You said you had two phone calls with Dylan Rosario regarding the project?

A Oh, we had many phone calls but at the very -- the consideration to end the project was over two demo sessions where we got members of the team together, I even got my father on this, you know, I think it was a Zoom or whatever it was, to see exactly where we were at and to do an evaluation of the project. But Dylan was in very bad pain and not in good shape, and seemed incapable of proceeding despite what seemed like his intent to continue. And so we gave him another week, circled back, did another demo, and then I had to make the very tough decision to stop the project and contract with Rowzzy, and proceed separately with my wealth management firm not using voice AI at that level.

Q Do you recall when that decision was made?

A No. I can probably find the details for that but not off the top of my head.

Q Do you recall, do you have like a timeline how far into the project that this happened?

A Because I'm not certain, I will say no. But we built for many months, if I recall correctly.

Q This, those two -- the phone calls regarding the demo sessions, other than the phone conversations --

A Whatever they were, sorry. We actually got on

and shared a screen to see where we were at, and when Dylan was unable to perform -- frankly he -- yeah, he was unable to perform, and I don't want to use the wrong term but like incapacitated sort of, or whatever that might be -- apologies for not knowing that exact terminology. But we gave him another week because we wanted to continue but it's very tough in the world of startups when your lead architect is not able to assign tasks or perform and you're the individual who is funding this project until we raise capital. And then imagine going to a venture capitalist and saying, hi there, we need several million dollars but our lead technical architect has been hit by a vehicle and is no longer able to work. We had to stop. And I just took my losses and moved on.

Q At that point how much had you paid into the project?

A I am not sure at that point. Sorry. But whatever that scope of work, there were regular invoices and I was certainly paying something.

Q Do you have that documentation?

A It should be exactly in alignment with that scope of work. We had a contract and I was being billed, and I believe that that contract should be accurate but I am not 100 percent. I would need to go back and look.

Q Well, I'm looking at what you sent us and

there's a fee and payment schedule under Section 8, and there's a grand total of -- if I'm reading it correctly -- of $68,800. Was that the total cost of the contract, or the value of the contract, the initial phase?

A So, I wouldn't say that was the value of the contract, it's what we paid. But initially the numbers that Dylan quoted me were far out of reach; and so what we got to was a price point where it was discounted for us to build, but once we had capital raised he'd be able to be compensated fairly for it. I think fintech would have been a great early vertical for Rowzzy, and Dylan, I believe, understands that. Or understood it.

Q Well, was there -- is there language in the contract indicating what, if you got to that point, what the payments would be to Mr. Rosario?

A I don't believe we formalized that. I just know -- you know, actually, I'll leave it there. I don't remember that part. I had so many different tasks going on -- contract negotiations, different wealth fintech providers that I was already working with at the time negotiating, it is very tough to recollect a hectic startup time of my life. I would think that's common but, you know.

Q Well, let me ask this: Is this the only

contract that you're aware of that you entered into with Mr. Rosario?

A That I signed, yes.

Q And it looks like, if I'm reading the payment schedule, there was an initial payment of $7500 and then ongoing biweekly payments of $3800. Was that your understanding?

A I do not recall perfectly but that seems accurate.

Q And then it says "Balance upon project when completion to be determined," do you know what was meant by that?

A No. I don't recall.

Q And just, do you think you have documentation as to the payments that were made on the contract?

A I would think so. I presumably have that information, even if it's just exiting my bank account or I would think there's -- Rowzzy has that information as well, for payments received.

Q I just want to be clear. Do you know what the total cost of the payments would have been if the project was completed?

A Well, if -- project completed is a large term. We were trying to create a unicorn, like a multi-billion dollar business hopefully. It would have been very, very

expensive, but early on it was reasonable pricing to then be able to raise capital.

Q I'm just talking about this initial Project 1.

A Oh, so thank you. Oh, I thought you meant when you said complete project, I thought you meant complete project. This early, early phase we were in, it sounds like around that $68,000 was very reasonable.

I mean, it's downright inexpensive what he was allowing me to do with Rowzzy because I believe Dylan understood its possible. It seems farfetched but, and even in particular, 2020, but it is going to probably happen at some point, a voice AI is going to replace most financial advisors. And while I was in the Merrill Lynch program I specialized in business management, and was able to examine lots of family office structures and got a great feel for where the wealth management industry was at, and I articulated this clearly to Dylan. I believe he understood what we had the potential to do.

Q Those two phone calls, you know, when it was decided that you could --

A Oh, Zoom meetings, I believe, or whatever. Some software to share screens.

Q Was there any written follow-up regarding the termination of the contract?

A I'm not sure. I can take a look. Certainly he

knows we've terminated the contract and he did not receive further payments.

Q Yeah, if you could, if you've got my email I can forward them onto Jeremy, too. If you could find -- if you could do a search and see if you can find any documentation regarding payments, one --

A Mm-hmm.

Q And then any documentation regarding the termination of the contract, if you have anything -- emails, letters, whatever you might have of a document, if you could send that to me I would appreciate it.

A I'll make a note to send -- and I think any money that was sent, the best record will probably be from Rowzzy because they received the payments, but.

And one more time, what was it? Oh, the documentation surrounding the termination of contract.

Q Right. And if you have it, any documentation regarding any payments that were made on the contract.

A Sure.

Q Okay.

A Although I would once again say that that contract and what you received from Rowzzy for payments, will be the most accurate I would think.

Q I apologize, I might have got -- we might not have been on the record when I asked this but, has anyone

at this point developed the AI that you were seeking to develop?

A Not that I have seen although I have not done a comprehensive search. I've been very focused on my wealth management firm and moving forward.

Q And just out of curiosity, with your wealth management firm are you just sticking with the traditional model at the moment then?

A So I wouldn't say traditional model.

Q Okay.

A But it is certainly a force for good, I would say it's quite innovative, early innings still for The Raffin Group, but it falls much more in line with a typical registered investment advisor than the pure fintech we were going for. And we were doing a moonshot. I believe I was around 28, I had had a very lucky career and had some capital and family support, and wanted to see if we could change the entire industry, after I had been running my group out of Rockefeller Center, and my knowledge of fintech was very strong. It actually continues to be strong but I have purposefully shied away now from voice AI because I think I am also a little traumatized from this whole experience. Sorry to say.

Q I'm sorry, you used the term thintech? (sic) Is it t-h-i-n?

A Oh, fintech. Financial technologies.
Q Fintech. Gotcha.
A Yes. I'm actually currently -- I don't know if it's related but, the chair of a large fintech board in New York City, for UJA-Federation, so I still am very involved in fintech, very interested, keeping my eyes open. But will it be me, personally, in my firm who completely changes the entire world of wealth management? Yet to be decided.
Q And are you still associating with Schwab with your --
A I am, yes. They are great.
Q And if you know, is Schwab trying to develop anything like this at all or?
A I have no idea but I doubt it. It's very difficult to build a voice AI that people like to interact with. It takes a very special type of engineer or team of engineers to do it. And Dylan is unequivocally one of those brilliant and dare I say genius-level engineers who could do this.
Q Are you aware of any other voice AI projects that Mr. Rosario developed?
A So, to my understanding, he played a role at Samsung developing Bixby. And in looking at his Linkedin he has a multi-decade-long -- or at least, I guess,

two-decade-long career of working at major tech firms in the enterprise space, which is what we were building. And the other folks at Rowzzy, like Dr. Lin Wang and J.D. Sou, who are also brilliant, they were very capable of building novel technologies. I feel that the team that we had put together, collectively we were ready to do it.

Q Did you ever consider the possibility of having the other team members take over for Dylan and try to bring the project along?

A There is only one Dylan Rosario. He is the man. He's the guy that I took my family's capital and moved it towards. I have never -- I can say I have never met anyone quite like Dylan. He thinks differently.

Q But just to follow up, did you actually -- did he actually give you references to AI projects that he had developed up to that point?

A I don't believe so. I don't think I asked.

Q I was just curious if he sent you to a site and said, you know, I developed this AI or this voice AI for this other platform or application.

A I don't believe so. No. No.

Q Okay. I'll let Jeremy step in. I don't think I have anything more. But that kind of gives me somewhat of an understanding of the whole process, but I'll let Jeremy ask questions.

A We were going for it. What can I say? Silicon Valley.

EXAMINATION

BY MR. JESSUP:

Q Good afternoon, Mr. Raffin. My name is Jeremy Jessup and I represent Mr. Rosario with regards to this claim.

I think I have an understanding and I'm going to try and walk through it and, you know, and I'll pause along the way to find out if I'm correct or if I'm way off. Okay?

A Sure.

Q So, it sounds like you have this idea and you eventually made your way to Rowzzy and -- or Mr. Rosario with this AI voice project that you were interested in.

A Yes.

Q Okay. Dylan, on behalf of Rowzzy, presents this scope of work contract covering three years to the tune of almost $1.3 million.

A That --

Q -- which is the first contract we saw.

A I want to stay with the one we signed, but the early figures that I was quoted which are probably more commensurate with what they should have been paid, before raising capital, those numbers were much larger than what

we ultimately signed and I negotiated.

Q I understand that. And in that first one we saw numbers in the, you know, nearly $1.3 million, which I think you've indicated was probably more on line of what it -- the project would be worth upon completion. Correct?

A Correct. Or the scope, yes. It would be worth much, much more one would hope at the true completion of this project.

Q Okay. You, being the money man, said let's take a step back. Let's get to a point to where we pay for you to be able to present a prototype to investors to raise capital so other people can pay what the true value of the contract would be.

A Yes, exactly.

Q Okay. And so that's where the other contract, the one that's signed, came in. That was signed on December 3rd, 2020.

A Yes.

Q Okay. In there we see the project schedule and timeline which is Number 6, and it has different sections but the longest it pans out is expectation that it would be completed within 12 weeks, or three months.

A I would have to review the contract again.

Q Okay.

A It's around that time frame. Three to four months if I recall correctly.

Q Okay. Let me just share my screen real quick. And this is what I was referring to on that contract, can you see that?

A Yes.

Q Okay. And, obviously, as we all know, work can go faster or it can go slower but this was kind of the anticipated timeline you had contracted for?

A Yes.

Q Okay. And then during this period, the contract price was essentially $68,800 to get you to a prototype spot where you could present to investors?

A Correct. We didn't even need an MVP. What I wanted was something to actually show to investors so that we could get a better valuation early on.

Q And I believe in your earlier -- when we were talking off the record, you had indicated that you felt that you were just at that spot where you could present to investors, and you thought perhaps 3.5 to 5 million was very doable?

A Absolutely. We were at that point. And if I recall correctly, I was getting -- I was quite organized and we were about there. I would have preferred closer to the $5 million in the raise just to get us on good

footing.

Q Understood. But if, let's say you get that prototype, you go to investors and let's say you raise $4 million. That money would have been used to continue with the project and continue to pay Rowzzy company and Dylan as they progress further down into the next phase, whatever that may have been.

A Correct. That was always the idea. Yes.

Q Okay. And because of -- I think the way you described it, spiritually he was there but physically did not appear that he could continue with getting past that last bit, that last hurdle.

A I have -- I've -- it's almost hard for me to talk about it. That level of discomfort that he was in while still trying to push forward with the project, made it all just very emotionally tough. Dylan, while he wanted to proceed, he was out of it, he was done for at that point in time, and I had to call it and stop the project at that point.

Q Okay. Because the project, it sounds like, was at the point to present to investors, but then you're looking at once you got the investors' money, not being able to complete the project.

A Correct. If you try to raise capital and you say I have this genius engineer and his team but sorry,

the genius engineer is actually not going to be building. He is -- and it's still unclear -- apologies. It was just a very tough time. And Dylan's spirit was there, he wanted to work. That man was unable to produce any quality work.

Q Okay. All right. Okay. I have no further questions. I think I have a grasp of understanding of what went on. I appreciate it, Mr. Raffin.

FURTHER EXAMINATION

BY MR. CHAMBERS:

Q I've just got a couple follow-ups.

A Absolutely.

Q When you got to that point where you were able to get the capital funding, were you anticipating negotiating a second contract with Dylan's group?

A Yes.

Q And just so I'm clear, did you ever get to that point at the point of termination where you felt you had a project ready to go to show investors or did you feel you had a little bit more to go?

A We had that last little step to go. I needed Dylan to produce what I wanted to show the investors, and it was actually mainly the front end. Dylan had produced a front end but as an engineer, which is very typical, they care a lot about the back end and the cyber security

and making sure it's really working and the AI. And so what I needed him to produce for me was something that wasn't what he necessarily enjoys, which is the front end side of it, as much. And if I had asked him to produce some code, I don't know -- and at that point he probably could not have produced it, honestly. He was not okay.

But we were not quite there where I was ready to go and use my reputation with these venture capitalists, and my father is a VC and runs a venture capitalist firm in San Francisco, and we weren't quite there. And I also asked for his advice and folks who were -- I have many mentors, and everyone collectively after that second failed demo a week later -- because we gave him a week because it's the right thing to do. A man gets injured like that, you give him at least a week beyond, you know, from when we gave him his time, beyond that demo day. He just could not do it. He wasn't going to be able to, and I didn't want to continue to have to pay significant capital and be on the hook for something and we didn't know if Dylan, frankly, would recover.

Q Okay. And have you had any contact with Mr. Rosario since that time?

A We have. There is a new technology which is really interesting, and Dylan is always kind of at the forefront of what's going on. And I -- I'm available to

him. I consider him a friend.

Q And do you recall when your last conversation was with Mr. Rosario?

A Maybe a couple of weeks ago, a few weeks ago. When I was deposed I reached out to Dylan and said hi, what is this?

Q Okay. And you talked to --

A Yeah, but Dylan sort of -- he was just like, he said, hey, I got hit by a car or something like this, and please don't quote me exactly, this is not -- I cannot recall this very well.

But it was a shock to me to receive this letter saying I was being deposed or whatever this was. And he took it as it's obvious, of course. He is in -- he got -- yeah, he just thought it was an obvious thing. Dylan thinks a little differently. And yeah, it was quite a quick conversation there and I have not -- I was not very happy about it because I feel that I also had losses in this. And I have moved forward and maintained my firm and I'm building, and I don't really get anything out of this, to my understanding, either for participating other than I was deposed and here I am. But am I interested in continuing to talk much with Dylan? Not really. I feel for him but I also have some pain from this experience. I put my heart and soul into

all of it too but nobody has asked about that, which is okay.

Q And at the time you terminated the contract, were you aware of why he was having physical difficulties?

A I -- certainly. I mean, he was having trouble breathing and trouble moving and really in trouble with life. I believe he got hit by a truck or something of this nature.

Q Did you know that at the time or in the subsequent conversation with Mr. Rosario?

A I would say that was an interesting span of time. I do not remember. That all happened very quickly. I don't recall the nature of those conversations. There was immediate worry for him. We were all -- I was worried for him.

Q Thank you. I don't have any other questions. I appreciate your time.

A Thank you.

FURTHER EXAMINATION

BY MR. JESSUP:

Q Mr. Raffin, of course I have a few follow-ups just for my own clarification.

When you talk about front end and back end, I'm kind of envisioning the back end being like you

indicated, the codes, the program side; and the front end kind of being more the aesthetics of --

A Exactly. The stuff I can do a little bit as well. I can't do the coding but I can do, I like that color or I like that box there.

Q Okay. So it sounds like before the project was terminated, the back end was done, it was just the last bit of aesthetics that you wanted to see done before presenting it to the investors.

A We were going back and forth even before his injury right there on the aesthetic. I am unable to determine the nature of the code but to my understanding it was there, and the neural networks were spun up and working and I think he had done, like, the Kubernetes or whatever these terms are, and I wanted it to look prettier. And he is always -- he's just kind of like he cares about the code, I needed it to look pretty. Because the early investors in venture capitalists, although they care a lot about the code, it makes an impact if it looks pretty. And Dylan doesn't really care about that stuff that much. He cares about the code, I needed it to be a little prettier, and that's where we couldn't -- he wouldn't make it prettier for me and I couldn't. He just like --

Q Right. And with regards to the contents, let's

assume everything went to plan, right? Everything got developed, you got the fundings, everything's completed, you get it integrated with Schwab --

A Yeah.

Q Okay? And would there have been any ongoing, like, royalties or anything of that nature payable to the Rowzzy group?

MR. CHAMBERS: I just want to object first. It calls for speculation and lacks foundation but you can go ahead and answer.

THE WITNESS: All right. I would say the intent was to work with Rowzzy all the way through, assuming they were able to do a great job. That was the assumption, yeah.

BY MR. JESSUP:

Q I guess what I'm asking is, let's say you hit the home run. Aside from whatever payments that they would have received pursuant to subsequent contracts, would it have been financially beneficial for them in the long run as well, or they would have been paid their contract, sent on their way and then you would have done your thing?

A No. I would have stayed with Rowzzy. Yeah.

Q Okay. And then would it still have been some kind of financial incentive for them to keep working and

updating, things of that nature?

A Oh, yes. They would have made much more money than I could have afforded had we raised capital.

Dylan was the lead architect for the entire artificial intelligence system. You can't just replace -- you can't just, like, go to another firm and say take this AI and tweak it, no. To my understanding, Dylan and his team built that AI, the entire construct of the artificial intelligence. You can't really go elsewhere once you start with somebody.

Q Got it. Thank you. I have no further questions.

MR. CHAMBERS: Like I said, Mr. Raffin, if you could get that documentation on payments and any documentation on the termination date, that would be great.

THE WITNESS: You got it. Sure.

MR. CHAMBERS: And, Jeremy, I'll forward anything I get to you as well.

THE REPORTER: Mr. Jessup, would you like a copy?

MR. JESSUP: Yes, please.

(Deposition concluded at 02:00 p.m.)

* * *

REPORTER'S CERTIFICATION

I, Marcie Rivera, Certified Shorthand Reporter, in and for the State of California, do hereby certify:

That the foregoing witness was by me duly sworn; that the deposition was then taken before me at the time and place herein set forth; that the testimony and proceedings were reported stenographically by me and later transcribed into typewriting under my direction; that the foregoing is a true record of the testimony and proceedings taken at that time.

IN WITNESS WHEREON, I have subscribed my name this 3rd day of April, 2023.

Marcie Rivera
Marcie Rivera, CSR No. 11846

Reference No.: 9355973

Case: ROSARIO vs ABDELHALIM

DECLARATION UNDER PENALTY OF PERJURY

I declare under penalty of perjury that I have read the entire transcript of my Deposition taken in the captioned matter or the same has been read to me, and the same is true and accurate, save and except for changes and/or corrections, if any, as indicated by me on the DEPOSITION ERRATA SHEET hereof, with the understanding that I offer these changes as if still under oath.

_____

Nicholas Raffin

NOTARIZATION OF CHANGES

(If Required)

Subscribed and sworn to on the _____ day of

_____, 20____ before me,

(Notary Sign)_____

(Print Name) Notary Public,

in and for the State of _____

Reference No.: 9355973
Case: ROSARIO vs ABDELHALIM

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Nicholas Raffin

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